

The Plaintiff's motion to compel compliance is **denied**. The court finds that the Defendants have acted with substantial justification, as the delay resulted from medical leave of the attorney primarily responsible for ESI coordination, and the inherent challenges of coordinating the searches in this particular case. The court also finds that the Defendants have never refused production and have been actively implementing the protocol.

The court denies the Plaintiff's requests for sanctions. The court sets a compliance deadline of 30 days from May 29, 2026.

15. 9:01 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF
ALEJANDRA CHAVEZ ORTIZ
FILED BY: BETHEL ISLAND ESTATES MHC, LLC
TENTATIVE RULING:

See tentative ruling in Line 3. This line item is duplicative of the motion in Line 3.

16. 9:01 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
*HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF MAYOR EDUARDO MARTINEZ
FILED BY: MONTOYA, ANGEL
TENTATIVE RULING:

The motion to compel the deposition of Mayor Eduardo Martinez is denied. Plaintiffs have failed to show that the Mayor has direct personal factual information on material issues in this case and that the information cannot be obtained from any other source.

Plaintiff is the former Fire Chief for the City of Richmond for approximately two years between November 2021 and October 2023. He brings a wrongful termination case against the City of Richmond.

Defendant has shown and Plaintiff does not contest that Plaintiff's employment

was terminated by City Manager Shasa Curl. Defendant asserts the City Manager authored the Plaintiff's termination letter, identified herself as the decision-maker in deposition and verified discovery responses on the reasons for the Plaintiff's termination. She does not believe she discussed terminating Plaintiff with the Mayor. Under the city charter, the city manager's administrative responsibilities include, without limitation, appointing and removing all department heads and employees of the city. Defendant alleges that the City Council has no authority to make personnel decisions involving department heads, including the fire chief.

Plaintiffs assertions that Mayor Martinez possesses direct factual information on material issues in this case that cannot be obtained from any other sources are speculative. For example Plaintiffs assert that Mayor Martinez presided over and attended city council meetings where Plaintiff's leadership and position as Fire Chief were at issue. Attendance at a public meeting means by definition there were other people there who could report on what the Mayor said if anything about the Plaintiff's continued employment. Mere attendance at, even "presiding over" a city council meeting, especially where the City Council does not have the authority to fire a department head, does not amount to the Mayor having direct personal factual information on issues material to the Plaintiff's termination. Even communicating "employment related opinions" about Plaintiff to the city manager – especially where the Plaintiffs have the communication in question referencing "last night's presentation at city council" does not mean that the Mayor has direct personal factual information on material issues that cannot be obtained from another source.

In contrast to the vague allegations of Plaintiff about the Mayor, the city manager has stated in deposition that she was the decision maker to fire Plaintiff, and can (or has already been) deposed to the extent of the involvement or influence of the Mayor. This undermines the Plaintiff's contention that material information even if possessed by the Mayor could not be obtained from any other source. Material Information about the fire chief's termination, even if the Mayor had direct personal knowledge of such, would be irrelevant if it were not communicated to the decision maker, the city manager. Thus Plaintiff's cannot meet their burden.

The motion to compel the deposition of Mayor Martinez is **denied**.